AFFIDAVIT OF PUBLICATION

DAILY TIMES-CALL

State of Colorado
County of Boulder

I, the undersigned agent, do solemnly swear that the DAILY TIMES-CALL is a daily newspaper printed, in whole or in part, and published in the City of Longmont, County of Boulder, State of Colorado, and which has general circulation therein and in parts of Boulder and Weld Counties; that said newspaper has been continuously and uninterruptedly published for a period of more than six months next prior to the first publication of the annexed legal notice of advertisement, that said newspaper has been admitted to the United States mails as second-class matter under the provisions of the act of March 3, 1879, or any amendments thereof, and that said newspaper is a daily newspaper duly qualified for publishing legal notices and advertisements within the meaning of the laws of the state of Colorado; that a copy of each number of said newspaper, in which said notice of advertisement was published, was transmitted by mail or carrier to each of subscribers of said newspaper, according to the customed mode of business in this office.

That the annexed legal notice or advertisement was published in the regular and entire edition of said daily newspaper once; and that one publication of said notice was in the issue of said newspaper date January 6, , 2006.

Marlene Van Dyke
Agent

Subscribed and sworn to before me this 6th day of January, 2006

Shannon M. Moreno
Notary Public

NOTARY PUBLIC SHANNON M. MORENO STATE OF COLORADO

MY COMMISSION EXPIRES JANUARY 31, 2008
350 TERRY ST.
LONGMONT
COLORADO 80501

FEE $ 45.54

PUBLIC HEARING
BOULDER COUNTY, COLORADO
PLANNING COMMISSION

DATE: January 18, 2006
TIME: 1:30 P.M. (Afternoon Session)
PLACE: Hearing Room, Third Floor, County Courthouse, Boulder

Notice is hereby given that the following public hearing(s) will be held by the County Planning Commission at the time and place specified above. All persons interested in the following items are requested to attend such hearing and aid the Commission members in their consideration.

AFTERNOON SESSION
1:30 P.M.

Docket V-05-015: PORTAL ESTATES (McKay) Easement Vacation
Request for Approval to vacate a portion of the platted utility easement within Lot 1 of Portal Estates; by James Reese McKay & Dinah Marie McKay; in accordance with the Boulder County Land Use Code. The proposed project is located in the Suburban Residential (SR) Zoning District, at 4695 Portside Way, northeast of Boulder, north of Twin Lakes Road, on Lot 1 of Portal Estates, in Section 11, T1N, R70W

City of Boulder Transit Village Area Plan Update
Informational Item: No Action Requested
A detailed information website can be accessed at **http://www.ci.boulder.co.us/planning/bvcp/BVCP2005/transit_village.htm**

Docket SU-93-14: DOWE FLATS 10-YEAR INTERIM REVIEW
Request for Approval of a Year 10 Interim Review of compliance with the 1994 Special Use approval for limestone/shale open mining and quarrying; by CEMEX Lyons Plant c/o John Lohr, Plant Manager; in accordance with the Boulder County Land Use Code. The proposed project is located in the Agricultural (A) Zoning District, at At 13301 55th Street, Dowe Flats, east of Lyons, north of U.S. Hwy. 66, west of 53rd Street, in Sections 9, 10, 15, 16, 21, and 22, T3N, R70W

Docket SU-05-007: BOULDER COUNTY PARKS & OPEN SPACE DEPT. (Barrett Open Space) SU/SSDP
Request for Approval of a Special Use Review / Site Specific Development Plan review for a public or quasi-public facility (other than those specifically listed in Section 4-514 of the Land Use Code) to allow the storage of County artifacts in an existing structure on the Barrett Open Space; by Boulder County Park & Open Space Dept. / Rich Koopmann; in accordance with the Boulder County Land Use Code. The proposed project is located in the Agricultural (A) Zoning District, at 13100 N. 107th Street (U.S. Hwy. 287), approximately 1/2 mile north of Ute Hwy. (State Hwy. 66), on the east side of U.S. Hwy. 287, in Section 22, T3N, R69W.

Planning Commission Bylaws
Review and discussion of Planning Commission Bylaws.

ADJOURNED

Planning Commission Annual Holiday Dinner
At Q's Restaurant (located inside the Hotel Boulderado at 2115 13th Street, Boulder).

Detailed information regarding this item, including maps and legal descriptions, is available for public examination at the Boulder County Land Use Department, 13th and Spruce, Boulder, Colorado 303-441- 3930.

Free Parking in the City of Boulder CAGID lots is available for Planning Commission hearing participants. See staff at hearing for city parking vouchers.

Persons needing special services provided under the Americans with Disabilities Act, please contact Peggy Jackson, ADA Coordinator, or the Boulder County Human Resources Office at (303-441-3508) at least 48 hours before the scheduled hearing.

Published in the Daily Times-Call, Longmont, Colorado, January 6, 2006.

BOULDER COUNTY PLANNING COMMISSION
AGENDA
January 18, 2006

AFTERNOON SESSION – 1:30 P.M.
Hearing Room, Third Floor,
County Courthouse, Boulder

AFTERNOON SESSION – 1:30 PM

1. **APPROVAL OF MINUTES/MISCELLANEOUS BUSINESS**
   Approval of the ***December 21, 2005*** Planning Commission Minutes

2. **Docket V-05-015: PORTAL ESTATES (McKay) Easement Vacation**
   Request: To vacate a portion of the platted utility easement within Lot 1 of Portal Estates
   Location: At 4695 Portside Way, northeast of Boulder, north of Twin Lakes Road, on Lot 1 of Portal Estates, in Section 11, T1N, R70W
   Zoning: Suburban Residential (SR)
   Applicants: James Reese McKay & Dinah Marie McKay
   (Staff Planner: Greg Oxenfeld)

3. **City of Boulder Transit Village Area Plan Update**
   (PLEASE NOTE THAT THIS ITEM WILL NOT BE HEARD BY THE PLANNING COMMISSION ON JANUARY 18, 2006)
   Informational Item: No Action Requested
   A detailed information website can be accessed at
   http://www.ci.boulder.co.us/planning/bvcp/BVCP2005/transit_village.htm
   (City of Boulder Planning Staff: Louise Grauer & Ruth McHeyser)

4. **Docket SU-93-14: DOWE FLATS 10-YEAR INTERIM REVIEW**

Request: Year 10 Interim Review of compliance with the 1994 Special Use approval for limestone/shale open mining and quarrying.
Location: At 13301 55th Street, Dowe Flats, east of Lyons, north of U.S. Hwy. 66, west of 53rd Street, in Sections 9, 10, 15, 16, 21, and 22, T3N, R70W
Zoning: Agricultural (A)
Applicant: CEMEX Lyons Plant c/o John Lohr, Plant Manager
Agent: Michael Figgs
(Staff Planner: David Callahan)

5. **Docket SU-05-007: BOULDER COUNTY PARKS & OPEN SPACE DEPT. (Barrett Open Space) SU/SSDP**

Request: Special Use Review / Site Specific Development Plan review for a public or quasi-public facility (other than those specifically listed in Section 4-514 of the Land Use Code) to allow the storage of County artifacts in an existing structure on the Barrett Open Space.
Location: At 13100 N. 107th Street (U.S. Hwy. 287), approximately 1/2 mile north of Ute Hwy. (State Hwy. 66), on the east side of U.S. Hwy. 287, in Section 22, T3N, R69W.
Zoning: Agricultural (A)
Applicant: Boulder County Park & Open Space Dept. / Rich Koopmann
(Staff Planner: Greg Oxenfeld)

6. **Planning Commission Bylaws**

Review and discussion of Planning Commission Bylaws.
(Land Use Director: Graham Billingsley)
(Assistant County Attorney: Barbara Andrews)

ADJOURNED

Planning Commission Annual Post-Holiday Dinner
At Q's Restaurant (located inside the Hotel Boulderado at 2115 13th Street, Boulder).

Detailed information regarding these items, including maps and legal descriptions, is available for public examination on the Boulder County Land Use website at http://www.co.boulder.co.us/lu or at our office located at 2045 13th Street, Boulder, Colorado 303-441- 3930

Post Office Box 471 • Boulder, Colorado 80306

Land Use Department

Courthouse Annex
2045 13th Street • 13th & Spruce Streets • Boulder, Colorado 80302 • (303) 441-3930

PUBLIC HEARING
BOULDER COUNTY, COLORADO
PLANNING COMMISSION

DATE: January 18, 2006
TIME: 1:30 P.M. (Afternoon Session)
PLACE: Hearing Room, Third Floor, County Courthouse, Boulder

Notice is hereby given that the following public hearing(s) will be held by the County Planning Commission at the time and place specified above. All persons interested in the following items are requested to attend such hearing and aid the Commission members in their consideration.

AFTERNOON SESSION – 1:30 P.M.

Docket V-05-015: PORTAL ESTATES (McKay) Easement Vacation
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Planning Commission Bylaws
Review and discussion of Planning Commission Bylaws.

Tom Mayer
County Commissioner

Ben Pearlman
County Commissioner

Will Toor
County Commissioner

ADJOURNED

Planning Commission Annual Holiday Dinner
At Q's Restaurant (located inside the Hotel Boulderado at 2115 13th Street, Boulder).

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Published: January 6, 2006 – Daily Times-Call G:\LUD\LUSHARED\MIN&AGN\PC0601PNO.DOC

BOULDER COUNTY PLANNING COMMISSION

MINUTES
January 18, 2006

AFTERNOON SESSION – 1:30 PM
Hearing Room, Third Floor,
County Courthouse, Boulder

{Approved – February 15, 2006}

PUBLIC HEARINGS

AFTERNOON SESSION -- 1:30 PM

On Wednesday, January 18, 2006 the Boulder County Planning Commission held a regular afternoon session, convening at 1:30 p.m. and adjourning at 4:00 p.m.

Commissioners Present: Karen Berry (Presiding Chair), Janet Ackermann, Gerald Caplan, Ron Goodman, Karl Kurtz, Mathew Morrison, Sharon Menard, and Lanny Pinchuk.

Commissioner Excused: Garry Sanfacon.

Staff Present: Graham Billingsley, Dale Case, David Callahan, Barbara Andrews (Assistant County Attorney), Greg Oxenfeld, Janice Biletnikoff, Rich Koopmann (County Parks & Open Space Department) and Martha Perez.

Interested Other(s): 3-5

MINUTES/MISCELLANEOUS BUSINESS
{DAT Tape 1}

APPROVAL OF MINUTES

MOTION: Sharon Menard MOVED that the Boulder County Planning Commission

APPROVE the Minutes for December 21, 2005 as amended.

SECOND: **Gerald Caplan.**

VOTE: **Motion PASSED Unanimously. {7 to 0}**

At this time David Callahan, Senior Planner, introduce Janice Biletnikoff, Planner II to the members of the Planning Commission.

CITY OF BOULDER TRANSIT VILLAGE AREA PLAN UPDATE
{DAT Tape 1}

MOTION: **Gerald Caplan MOVED that the Boulder County Planning Commission TABLE the matter indefinitely as requested.**

SECOND: **Janet Ackermann.**

VOTE: **Motion PASSED Unanimously. {8 to 0}**

Docket V-05-015: PORTAL ESTATES
(McKay)
Easement Vacation
{DAT Tape 1}

GREG OXENFELD, Planner II, presented the application for James Reese McKay and Dinah Marie McKay to vacate a portion of the platted utility easement within Lot 1 of Portal Estates. The proposed project is located in the Suburban Residential (SR) Zoning District, at 4695 Portside Way, northeast of Boulder, north of Twin Lakes Road, on Lot 1 of Portal Estates, in Section 11, T1N, R70W. Staff recommended APPROVAL as outlined in the staff recommendation, dated January 18, 2006.

{DAT Tape 1}

PUBLIC HEARING OPENED.

SPEAKERS: James Reese McKay (Applicant) - 4645 Portside Way

PUBLIC HEARING CLOSED.

{DAT Tape 1}

MOTION: **Janet Ackermann MOVED that the Boulder County Planning Commission APPROVE and recommend that the Board of County Commissioners approve Docket V-05-015: PORTAL ESTATES (McKay) Easement Vacation, subject to the two conditions set forth in the staff recommendation.**

CONDITIONS of APPROVAL:

1. The area recognized for the utility easement vacation consists of the northerly 6-feet of Lot 1 except the westerly 2 feet along the westerly lot line and to vacate the easement over the easterly 6 feet of Lot 1 except the southerly 6 feet thereof.

2. The vacated area may not be used for building purposes, except for existing improvements located within the easement, and for future improvements that may be necessary for the retaining walls along the northerly line of Lot 1.

SECOND: **Mathew Morrison.**

VOTE: **Motion PASSED Unanimously. {8 to 0}**

Docket SU-93-14: DOWE FLATS 10-YEAR INTERIM REVIEW {DAT Tape 1}

DAVID CALLAHAN, Senior Planner, presented the application for CEMEX / John Lohr, Project Manager, for the Year 10 Interim Review of compliance with the 1994 Special Use approval for limestone/shale open mining and quarrying. The proposed project is located in the Agricultural (A) Zoning District, at 13301 55th Street, Dowe Flats, east of Lyons, north of U.S. Hwy. 66, west of 55th Street, in Sections 9, 10, 15, 16, 21 and 22, T3N, R70W. Staff recommended that the Boulder County Planning Commission APPROVE the operation in compliance with the conditions approval, and that the conditions of approval continue to be enforceable, as outlined in the staff recommendation, dated January 18, 2006.

{DAT Tape 1}

PUBLIC HEARING OPENED.

SPEAKERS: Mike Figgs (Consultant for CEMEX) – 26 Wagner Road; John Lohr (Project Manager for CEMEX); and Denise Arthur (Restoration Ecologist/Consultant for CEMEX) - 667 Hurricane Drive, Nederland.

PUBLIC HEARING CLOSED.

{DAT Tape 1}

MOTION: **Lanny Pinchuk MOVED that the Boulder County Planning Commission recommend that the Board of County Commissioners that Docket SU-93-14: DOWE FLATS Mining and Reclamation Project continue to operate IN COMPLIANCE with the conditions of approval, and that the conditions of approval continue to be enforceable.**

SECOND: **Sharon Menard.**

VOTE: **Motion PASSED Unanimously. {8 to 0}**

DOCKET SU-05-007: BOULDER COUNTY PARKS & OPEN SPACE DEPARTMENT
(Barrett Open Space)
SU/SSDP
{DAT Tape 1}

GREG OXENFELD, Planner II, presented the application for Boulder County Parks & Open Space Department / Rich Koopmann for a Special Use Review / Site Specific Development Plan for a public or quasi public facility (other than those specified in the Land Use Code) to allow the storage of County artifacts in an existing structure on the Barrett Open Space. The proposed project is located in the Agricultural (A) Zoning District, at 13100 N. 107th Street (U.S. Hwy. 287), approximately ½ mile north of Ute Hwy. (State Hwy. 66) on the east side of U.S. Hwy. 287, in Section 22, T3N, R69W. Staff recommended CONDITIONAL APPROVAL, as outlined in the staff recommendation, dated January 18, 2006.

{DAT Tape 1}

PUBLIC HEARING OPENED.

SPEAKERS: Rich Koopmann (Boulder County Parks & Open Space Dept.);

PUBLIC HEARING CLOSED.

{DAT Tape 1}

MOTION: **Janet Ackermann MOVED that the Boulder County Planning Commission CONDITIONALLY APPROVE and recommend that the Board of County Commissioners conditionally approve Docket SU-05-007: BOULDER COUNTY PARKS & OPEN SPACE DEPARTMENT (Barrett Open Space) Special Use Review / Site Specific Development Plan, subject to the four conditions set forth in the staff recommendation, dated January 18, 2006.**

CONDITIONS of APPROVAL:

1. The Applicant shall comply with the County Health Department requirements. Application for and issuance of an individual sewage disposal system (OWS) use permit for continued use of the system must be made prior to the issuance of any building permits associated with this request.

2. The Applicant is subject to all applicable County Building Division requirements for a building permit for the proposed use.

3. Prior to the issuance of a building permit, one copy of the proposed lighting plan with details for all exterior lighting must be submitted to and approved by the Land Use Department.

Exterior lighting must be down lighting to minimize glare as much as possible. Details submitted must indicate location of all exterior fixtures on site and on structures, and must include cut sheets (manufacturer's specifications with picture or diagram) of all fixtures. Light poles cannot exceed twelve feet in height. Prior to final inspection or issuance of Certificate of Occupancy, the full installation of the approved lighting plan must be inspected and approved by the Land Use Department.

4. The Applicant shall be subject to the terms, conditions and commitments of record and in the file for Docket SU-05-007: Boulder County Parks & Open Space Dept. (Barrett Open Space).

SECOND: **Sharon Menard.**

VOTE: **Motion PASSED Unanimously. {8 to 0}**

PLANNING COMMISSION BYLAWS
{DAT Tape 1}

GRAHAM BILLINGSLEY, Land Use Director gave a brief overview of the changes made to the Planning Commission Bylaws. Staff recommended APPROVAL, as outlined in the staff recommendation, dated January 18, 2006.

{DAT Tape 1}

PUBLIC HEARING OPENED.

SPEAKERS: None.

PUBLIC HEARING CLOSED.

MOTION: **Gerald Caplan MOVED that the Boulder County Planning Commission APPROVE and recommend that the Board of County Commissioners approve the updated Planning Commission Bylaws as amended.**

AMENDMENTS to BYLAWS:

II (E): Change the words "disability period" at the end of the paragraph to "absence."

IV (B): Delete the citation 30-6-402(4) and the text in brackets.

V (A): Change the word "form" in the fourth sentence to "from"; change the word "action" in the sixth sentence to "acting"; and change the last sentence to read as follows: "Moreover, no such member shall testify before the Planning Commission as a member of the public on any such matter, in order to avoid any appearance of undue influence on the other Planning Commission members."

SECOND: **Lanny Pinchuk.**

AMEND #1: **Karen Berry MOVED to AMEND Section V (A) as follows "Moreover, no such members shall testify before the Planning Commission or the Board of County Commissioners as a member of the public on any such matter, in order to avoid any appearance of undue influence on the other Planning Commission members."**

SECOND: **Gerald Caplan.**

Friendly Amendment: **Gerald Caplan offered a friendly amendment to Commissioner Berry's amendment to change the words "undue influence" to "impropriety."**

Commissioner Berry accepted the friendly amendment.

Amendment as follows:
"Moreover, no such members shall testify before the Planning Commission or the Board of County Commissioners as a member of the public on any such matter, in order to avoid any appearance of impropriety on the other Planning Commission members."

VOTE TO AMEND:

YES	NO	ABSTAINED
Lanny Pinchuk	Janet Ackermann	Ron Goodman
Karen Berry	Karl Kurtz	
Gerald Caplan	Sharon Menard	
	Mathew Morrison	

Motion FAILED 4 to 3 with 1 abstention.

Friendly Amendment: **Janet Ackermann offered a friendly amendment to Section V (A) as follows "Moreover, no such members shall testify before the Planning Commission or the Board of County Commissioners as a member of the public on any such matter, in order to avoid any appearance of impropriety."**

Commissioner Caplan accepted the friendly amendment.

VOTE: **Motion PASSED Unanimously. {8 to 0}**

MOTION: **Lanny Pinchuk MOVED to ADJOURN the Planning Commission meeting.**

SECOND: **Sharon Menard.**

VOTE: **Motion PASSED Unanimously. {8 to 0}**

ADJOURNED

At this time the Planning Commission adjourned their meeting and attended their Annual Post-Holiday Dinner at Q's Restaurant (located inside Hotel Boulderado at 2115 13th Street, Boulder).

Detailed information regarding these items, including maps and legal descriptions, is available for public examination at the Boulder County Land Use Department, 13th and Spruce, Boulder, Colorado 303-441- 3930